

		Here, the court has reviewed the parties' Agreement and it does not appear that service by regular mail or email is sufficient. Thus, the petition must be served pursuant to the arbitration agreement; or if the agreement does not provide for the manner of service, service must be made as provided by law for service of summons in an action. (Civ. Proc. Code, § 1290.4.) Additionally, the court has reviewed the Award and it is not clear as to what the \$663,812.02 requested judgment consists of relative to the Award. Petition is ordered to file a supplemental declaration clarifying the requested judgment. The court continues the hearing on this Petition to 11/2/23 at 2PM. Petitioner is ordered to properly and timely serve Respondents/Claimants with the Petition and notice of the new hearing date. Petitioner is ordered to serve notice of this Order.
4	City of Westminster vs. 10451 Schooner Avenue, Westminster, California 92683 2023-01315332	Petitioner City Of Westminster 1. Petition For Order to Abate Substandard Building and Appointment of Receiver 2. Status Conference The Court will hear from the parties re status.
5	City of Westminster vs. Almanza 2023-01304922	Petitioner City Of Westminster Petition For Order to Abate Substandard Building and Appointment of Receiver The Court will hear from the parties re status.
6	David Behar vs. Mercury Insurance Company 2023-01311747	Respondent Mercury Insurance Company Motion to Compel Physical/Mental Examination Respondent Mercury Insurance Company's ("Mercury") Motion to Compel Compliance with

		Demand for Physical Examination is granted. Under Insurance Code section 11580.2, subdivision (o), an insurer “may require the insured, except during periods of hospitalization, to make himself or herself available for a medical examination.” The insured’s failure to comply with the medical examination will result in arbitration proceedings being stayed for at least 30 days following compliance by the insured. (Ins. Code, § 11580.2, subd. (o).) Discovery may be enforced by the court having jurisdiction of any suit filed under section 11580.2. (Ins. Code § 11580.2, subd. (f); <i>Miranda v. 21st Century Ins. Co.</i> (2004) 117 Cal.App.4th 913, 926.) A defendant who has demanded a physical examination may move for an order compelling compliance if the plaintiff has modified the demand or makes an unwarranted refusal to submit to the examination. The motion must accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc. § 2032.250, subd. (a).) Here, Mercury proffers evidence that it properly served Claimant David Behar with a Demand For Physical Examination, noticing Behar’s physical examination for June 19, 2023. Behar did not object to the demand, and did not appear for his June 19th examination. Thereafter, Mercury’s counsel sent a meet and confer letter to Behar’s counsel; among other things, Mercury stated it would file a motion to compel if it did not receive a response from Behar’s counsel. Mercury also re-noticed Behar’s physical examination by serving an amended demand. Behar did not respond to Mercury’s meet and confer letter, and did not file an opposition to this motion. Therefore, the Court orders Claimant David Behar to comply with the Amended Demand for Physical Examination and to appear for the examination noticed for October 2, 2023, at 3:00 pm, at 2720 N. Harbor Blvd., Suite 210, Fullerton, CA 92835. The examination shall be conducted by Eric Lin, MD, who specializes in orthopedic surgery, as further delineated in the amended demand. (ROA 30
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		[Norling Decl. at ¶ 8, Exh. D].) In connection with this motion, monetary sanctions in the reasonable amount of \$1,169, are awarded against Claimant David Behar and his counsel of record, Lawrence Hoodack. (Code Civ. Proc. § 2032.250, subd. (b).) The sanctions are payable to Mercury’s counsel, Bretoi, Lutz & Steele, within 30 days. Mercury shall give notice of the ruling.
7	Erickson vs. Allstate Northbrook Indemnity Company 2023-01328260	Petitioners Alexandre Ohana, Maresha Erickson Petition to Compel Arbitration The petition of petitioners Maresha Erickson and Alexandre Ohana for an order compelling respondent Allstate Northbrook Indemnity Company to arbitrate Petitioners’ underinsured motorist claims is granted. The court appoints as arbitrator the Hon. Christopher Warner. Arbitration of uninsured motorist/underinsured motorist claims is mandated by Insurance Code §11580.2 and by the terms of the automobile liability policy issued by the Respondent under which these claims are being made. The remaining matter appears to be the timing of the arbitration. Petitioners ask that the court order the arbitration to begin within 90 days. Respondent does not indicate a specific timeframe needed, but states it will need a medical examination of each Petitioner and the medical report from the examination. Under Insurance Code §11580.2(o), if certain discovery is not provided, including a claimants submission to medical examinations, within 20 days of request, then “the actual arbitration proceedings shall be stayed for at least 30 days following compliance by the insured.” There is no requirement that discovery be completed prior to the initiation of arbitration.